

26STCP00104 26STCP00104

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Case Number: 26STCP00104 Hearing Date: September 17, 2026 Dept: 414

26STCP00104

Peter Schroeder v. Telzio, Inc.

Thursday,

September 17, 2026

[TENTATIVE] ORDER ON PETITION TO COMPEL INSPECTION OF CORPORATE RECORDS

I. BACKGROUND

Plaintiff

filed this petition to compel inspection of corporate records on July 8, 2026, pursuant to Corporations Code § 1601, which entitles shareholders to inspect and copy

accounting books, records, and minutes of proceedings of shareholders and the board of

directors for purposes reasonably related to their interests as shareholders. (Corp. Code, § 1601 (a)(1).) Petitioner is a founder, former officer, and current shareholder of Respondent, Telzio, Inc. ("Telzio") (Petrn. ¶ 7.)

Petitioner

alleges that he made a written statutory demand to inspect and copy corporate records by email and certified mail directed to Respondent and its Chief Executive Officer. (Id. at ¶ 9.) While Petitioner was granted access to

certain documents, the documents were partial and incomplete. (Id. ¶ 12.)

Respondent's co-founder and officer of Telzio asserts that Telzio has complied with its statutory obligations to permit inspection. (Diana Chu decl., ¶2 filed 8/24/26.)

Respondent,

Telzio, filed its response to the petition asserting affirmative defenses. (Rsp. 8/24/26.)

Respondent

filed a Notice of Stay of this action pursuant to a stipulation filed in the Family Court bearing Case No. 24STFL06012. (Alliance decl., 2/11/26.) Mr. Alliance is counsel of record for Ms. Chu in that proceeding. The stipulation, signed by Hon. Joshua D. Wayser, provides that "[t]here will be a stay on the related action filed by Mr. Schroeder against Telzio under a separate case number 26STCP00104. Should that case move forward, then the documents Mr. Schroeder received through discovery concerning Telzio's records can be used by Mr. Schroeder within that lawsuit as 'evidence' in his case." (Id. at ¶ 10.) Despite this stipulation and order, Mr. Schroeder requests a resolution on the merits of his civil petition. Notably, the stipulation provides that Ms. Chu "will provide the applicable corporate documents" requested by Mr. Schroeder. (Id., pg. 2, ¶ 4.)

Mr.

Alliance contends that because of this Court-ordered stay, this Court does not have the authority to proceed with this matter.
(Alliance decl. filed 8/24/26.)

Mr.

Schroeder requests that this court determine the procedural interaction between this case and the family law case as directed by the Hon. David I. Wasserman that "[a]ny requests regarding the scheduling deadlines in the civil matter and their interaction with the stipulation entered in the family law matter should be raised with Dept. 414." (Reply 8/28/26, Petr's RJN, Ex. A.)

Respondent's

brief argues that this dispute is a "byproduct" of the divorce proceedings, and that the Family Court has "continued to oversee the parties' document dispute." (Brief filed 9/10/26, 2:14-15.) Telzio requests that this Court honor the stay and continue the September 17 hearing

without reaching the merits as the Family Court supervises the stipulation and order. (Id. 2:21-22.)

II. ANALYSIS

After

review of all of the briefs and declarations submitted by both parties, it appears that the documents requested by petition in this action overlap with the parties' discovery disputes in the Family Court matter bearing Case No., 24STFL0612 pending in Department 829 of the Stanley Mosk Courthouse, Hon. David I. Wasserman presiding. While this Court questions another court's authority to stay matters not before it, it is clear from the Family Court order that this matter affects the Family Court's supervision and control over discovery of matters at issue in the dissolution proceeding.

Accordingly,

the Court orders Respondent, who requests that this Court honor the stay, to file a Notice of Related Cases to relate this matter to the Family Court proceeding. (Cal. Rules of Court, Rule 3.300.)

As one of the cases is a family law case, "the presiding judge or a judge designated by the presiding judge must determine whether the cases should be ordered related and, if so, to which judge or department they should be assigned." (Cal. Rules of

Court, Rule 3.300(h)(1)(C).) Respondent is directed

to file the Notice of Related Cases in Department 534, (formerly Department 1.)

Further proceedings in this action are stayed pending a determination by the Presiding Judge on the Notice of Related Case filing.